



DRAFT, PENDING ATTORNEY REVIEW

CONTINGENCY AGREEMENT

INSURANCE CLAIM · SIGNED BEFORE THE ADJUSTER VISIT

Business address: 2600 Laverna St, Apt 50, Fremont, NE 68025

Seller: HMP Siding & Roofing LLC

Phone: 402-889-3385 · Sales rep: _____

Registered Nebraska contractor # _____

Rep phone: _____

Agreement # _____

Date of this transaction: _____

IN PLAIN WORDS

If your insurer approves your claim, HMP does the approved work for the amount your insurer approves, and you pay your deductible. **If your insurer denies the claim, you owe HMP nothing and this agreement ends.** No payment is due at signing, and you can cancel (section 6).

1 HOMEOWNER AND PROPERTY

Homeowner name(s): _____

Phone: _____ Email: _____

Property address: _____

City: _____ State: NE ZIP: _____

Mailing address (if different): _____

2 YOUR INSURANCE CLAIM

Insurance company: _____ Claim # (if filed): _____

Date of loss (storm date): _____ Cause: ☐ Hail ☐ Wind ☐ Fallen tree ☐ Other: _____

Mortgage company (if any): _____

Areas this agreement covers: ☐ Roof ☐ Siding ☐ Gutters ☐ Soffit / fascia ☐ Other: _____

3 IT DEPENDS ON YOUR INSURER'S APPROVAL

- **This agreement is contingent on your insurer approving your claim.** It becomes a job only if your insurer approves all or part of your claim in writing.
- **If your insurer approves all or part of the claim:** HMP does the approved work on the areas checked above. The price is the amount in your insurer's written approved scope for that work, plus any supplements your insurer approves in writing. You pay your deductible (see the Deductible Notice). Before any work starts, you and HMP sign HMP's full written contract with the itemized scope, and it comes with its own right to cancel.
- **If your insurer denies the claim, you owe HMP nothing and this agreement ends.** You do not need to sign or send anything else.
- **No payment is due at signing.** What HMP will charge for is set out in the written estimate/contract.
- **No promises about your claim.** HMP makes no promise that your insurer will approve or pay any part of your claim. Only your insurer decides what your policy covers.

Homeowner initials: _____

4 YOUR CLAIM, NOT OURS

You file the claim with your insurer, and every decision about the claim and the settlement is yours.

HMP WILL

- Inspect your property and photograph the damage.
- Give you a copy of its written damage report and photos.
- If you want, be at your property when the adjuster inspects, to show the damage it found.
- Answer your questions about the work and the materials.

HMP WILL NOT

- Negotiate or settle your claim, or speak for you with your insurer.
- Act as your public adjuster. HMP is a contractor.
- Ask you to sign over (assign) any insurance rights or benefits.
- Be named on any insurance check.

5 INSURANCE MONEY AND THE ITEMIZED DESCRIPTION

- **No assignment of benefits (Neb. Rev. Stat. 44-8605).** You keep all your rights and benefits under your insurance policy. This agreement does not assign any of them to HMP, and HMP is not named as a payee or co-payee on any insurance check. Your insurer pays you (and your mortgage company, if it is on the policy).
- **Itemized description to you and your insurer (44-8606).** Before any repair or replacement work starts, HMP will give you and your insurer an itemized description of the work to be done and the materials, labor and fees for the repair or replacement, and the total itemized amount agreed to be paid for the work. This does not stop you or HMP from identifying other goods and services needed to complete repairs associated with a covered loss.
- **Deductible Notice (44-8607).** You sign the notice in section 8. A copy goes to your insurer before any claim money is paid.

6 CANCELLATION

BUYER'S RIGHT TO CANCEL

You, the buyer, may cancel this transaction at any time prior to midnight of the third business day after the date of this transaction. See the attached notice of cancellation form for an explanation of this right.

You may cancel this agreement by mailing a written notice to HMP Siding & Roofing LLC, 2600 Laverna St, Apt 50, Fremont, NE 68025 before midnight of the third business day after you signed this agreement. If you wish, you may use this page as that notice by writing "I hereby cancel" and adding your name and address.

Insurance claim (Neb. Rev. Stat. 44-8603): because this agreement is to be paid from a property and casualty insurance claim, you may also cancel until midnight of the third business day after you receive written notice from your insurer that all or part of the claim is not a covered loss under your policy, if that is later. Include a copy of your insurer's notice with your cancellation.

How to cancel: mail or deliver the attached Notice of Cancellation, or any signed and dated written notice, to HMP Siding & Roofing LLC at the business address above. A mailed notice counts on the day it is mailed, postage prepaid and properly addressed. **Refund:** no payment is due under this agreement; if you ever paid HMP anything under it, HMP returns it within 10 days after your notice.

HMP explained my right to cancel out loud. Buyer initials: _____

7 SIGNATURES

By signing, the homeowner confirms they received a completed copy of this agreement and two copies of the Notice of Cancellation.

_____ Homeowner signature	_____ Printed name	_____ Date
_____ Second homeowner signature (if any)	_____ Printed name	_____ Date
_____ HMP representative signature	_____ Printed name and title	_____ Date

8 DEDUCTIBLE NOTICE

NEBRASKA REV. STAT. 44-8607 · SIGNED BY THE INSURED · A COPY GOES TO YOUR INSURER

IT IS A VIOLATION OF THE INSURANCE LAWS OF NEBRASKA TO REBATE ANY PORTION OF AN INSURANCE DEDUCTIBLE AS AN INDUCEMENT TO THE INSURED TO ACCEPT A RESIDENTIAL CONTRACTOR'S PROPOSAL TO REPAIR DAMAGED PROPERTY. REBATE OF A DEDUCTIBLE INCLUDES GRANTING ANY ALLOWANCE OR OFFERING ANY DISCOUNT AGAINST THE FEES TO BE CHARGED FOR WORK TO BE PERFORMED OR PAYING THE INSURED HOMEOWNER THE DEDUCTIBLE AMOUNT SET FORTH IN THE INSURANCE POLICY. THE INSURED HOMEOWNER IS PERSONALLY RESPONSIBLE FOR PAYMENT OF THE DEDUCTIBLE. THE INSURANCE FRAUD ACT AND NEBRASKA CRIMINAL STATUTES PROHIBIT THE INSURED HOMEOWNER FROM ACCEPTING FROM A RESIDENTIAL CONTRACTOR A REBATE OF THE DEDUCTIBLE OR OTHERWISE ACCEPTING ANY ALLOWANCE OR DISCOUNT FROM THE RESIDENTIAL CONTRACTOR TO COVER THE COST OF THE DEDUCTIBLE. VIOLATIONS MAY BE PUNISHABLE BY CIVIL OR CRIMINAL PENALTIES.

Signature of insured homeowner

Date

WHAT HAPPENS NEXT**1****You file the claim.**

If you haven't yet, call your insurer or file online. Tell HMP the date of the adjuster's visit.

2**The adjuster inspects.**

If you want, HMP is there to show the damage it found. HMP does not negotiate your claim.

3**Your insurer decides, in writing.**

Approved (all or part): you and HMP sign the full contract, and the itemized description goes to you and your insurer before any work starts. Denied: you owe nothing and this agreement ends.

Tear-off: give the buyer both copies, filled in.

NOTICE OF CANCELLATION

COPY 1 · BUYER KEEPS

Date of transaction: _____ Property address: _____

YOU MAY CANCEL THIS TRANSACTION, WITHOUT ANY PENALTY OR OBLIGATION, WITHIN THREE BUSINESS DAYS FROM THE ABOVE DATE. IF THIS CONTRACT WILL BE PAID IN WHOLE OR IN PART FROM A PROPERTY OR CASUALTY INSURANCE CLAIM, YOU MAY ALSO CANCEL UNTIL MIDNIGHT OF THE THIRD BUSINESS DAY AFTER YOU RECEIVE WRITTEN NOTICE FROM YOUR INSURER THAT ALL OR PART OF THE CLAIM IS NOT COVERED, IF THAT IS LATER.

IF YOU CANCEL, ANY PROPERTY TRADED IN, ANY PAYMENTS MADE BY YOU UNDER THE CONTRACT OR SALE, AND ANY NEGOTIABLE INSTRUMENT EXECUTED BY YOU WILL BE RETURNED WITHIN 10 DAYS FOLLOWING RECEIPT BY THE SELLER OF YOUR CANCELLATION NOTICE, AND ANY SECURITY INTEREST ARISING OUT OF THE TRANSACTION WILL BE CANCELLED.

IF YOU CANCEL, YOU MUST MAKE AVAILABLE TO THE SELLER AT YOUR RESIDENCE, IN SUBSTANTIALLY AS GOOD CONDITION AS WHEN RECEIVED, ANY GOODS DELIVERED TO YOU UNDER THIS CONTRACT OR SALE, OR YOU MAY, IF YOU WISH, COMPLY WITH THE INSTRUCTIONS OF THE SELLER REGARDING THE RETURN SHIPMENT OF THE GOODS AT THE SELLER'S EXPENSE AND RISK.

IF YOU DO MAKE THE GOODS AVAILABLE TO THE SELLER AND THE SELLER DOES NOT PICK THEM UP WITHIN 20 DAYS OF THE DATE OF YOUR NOTICE OF CANCELLATION, YOU MAY RETAIN OR DISPOSE OF THE GOODS WITHOUT ANY FURTHER OBLIGATION. IF YOU FAIL TO MAKE THE GOODS AVAILABLE TO THE SELLER, OR IF YOU AGREE TO RETURN THE GOODS TO THE SELLER AND FAIL TO DO SO, THEN YOU REMAIN LIABLE FOR PERFORMANCE OF ALL OBLIGATIONS UNDER THE CONTRACT.

TO CANCEL THIS TRANSACTION, MAIL OR DELIVER A SIGNED AND DATED COPY OF THIS CANCELLATION NOTICE, OR ANY OTHER WRITTEN NOTICE, TO HMP SIDING & ROOFING LLC, AT 2600 LAVERNA ST, APT 50, FREMONT, NE 68025 NOT LATER THAN MIDNIGHT OF _____ (OR OF THE LATER INSURANCE DATE ABOVE, IF IT APPLIES).

I HEREBY CANCEL THIS TRANSACTION.

Date: _____ Buyer's signature: _____

----- CUT HERE -----

NOTICE OF CANCELLATION

COPY 2 · BUYER CAN SEND TO CANCEL

Date of transaction: _____ Property address: _____

YOU MAY CANCEL THIS TRANSACTION, WITHOUT ANY PENALTY OR OBLIGATION, WITHIN THREE BUSINESS DAYS FROM THE ABOVE DATE. IF THIS CONTRACT WILL BE PAID IN WHOLE OR IN PART FROM A PROPERTY OR CASUALTY INSURANCE CLAIM, YOU MAY ALSO CANCEL UNTIL MIDNIGHT OF THE THIRD BUSINESS DAY AFTER YOU RECEIVE WRITTEN NOTICE FROM YOUR INSURER THAT ALL OR PART OF THE CLAIM IS NOT COVERED, IF THAT IS LATER.

IF YOU CANCEL, ANY PROPERTY TRADED IN, ANY PAYMENTS MADE BY YOU UNDER THE CONTRACT OR SALE, AND ANY NEGOTIABLE INSTRUMENT EXECUTED BY YOU WILL BE RETURNED WITHIN 10 DAYS FOLLOWING RECEIPT BY THE SELLER OF YOUR CANCELLATION NOTICE, AND ANY SECURITY INTEREST ARISING OUT OF THE TRANSACTION WILL BE CANCELLED.

IF YOU CANCEL, YOU MUST MAKE AVAILABLE TO THE SELLER AT YOUR RESIDENCE, IN SUBSTANTIALLY AS GOOD CONDITION AS WHEN RECEIVED, ANY GOODS DELIVERED TO YOU UNDER THIS CONTRACT OR SALE, OR YOU MAY, IF YOU WISH, COMPLY WITH THE INSTRUCTIONS OF THE SELLER REGARDING THE RETURN SHIPMENT OF THE GOODS AT THE SELLER'S EXPENSE AND RISK.

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Date: _____ Buyer's signature: _____